

HOUSE No. 1446

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick Joseph Kearney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act clarifying Meningococcal Vaccine Policy.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/17/2025</i>

HOUSE No. 1446

By Representative Kearney of Scituate, a petition (accompanied by bill, House, No. 1446) of Patrick Joseph Kearney relative to college student immunization for meningococcal disease. Higher Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act clarifying Meningococcal Vaccine Policy.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 15D of Chapter 76 of the Massachusetts General Laws is hereby amended by
2 striking the original Section 15D and replacing it with the following:

3 “Section 15D. Section 15D. No newly enrolled full-time student attending a college,
4 university or secondary school shall be registered at the institution except upon presentation of a
5 medical certificate that the student has been immunized against meningococcal disease in
6 accordance with the recommendations of the Centers for Disease Control and Prevention
7 Advisory Committee on Immunization Practices or on the condition that a medical certificate
8 documenting immunization against meningococcal disease shall be provided within 30 days of
9 registration; but a student may be registered at the institution upon certification made, in writing,
10 by a physician who has personally examined the student and in whose opinion the physical
11 condition of the student is such that his health would be endangered by the immunization. The
12 department of public health shall promulgate rules and regulations and additional guidance for

13 enforcement of this section in accordance with section 15 of this chapter. In the absence of an
14 emergency or epidemic of disease declared by the department of public health, no student who
15 states in writing that immunization would conflict with his religious beliefs shall be required to
16 present the medical certificate in order to be admitted to the institution. This section shall not
17 require an institution to provide the vaccine or the expense for the vaccine against
18 meningococcal disease.